

**Justification Review Document
for Other than Full and Open Competition - FAR Part 6**

Program/Equipment: AMCOM Logistics Center (ALC), Maintenance and Overhaul (M&O) of the Head, Rotary Wing for AH-64 Apache

Authority: Title 10 United States Code (U.S.C.) 3204(a)(5) as implemented by Federal Acquisition Regulation (FAR) 6.302-5(a)(2)(i), "Authorized or required by statute."

Amount: [REDACTED]

Prepared by:

Typed Name: [REDACTED] Date: [REDACTED]

Title: [REDACTED] E-Mail: [REDACTED]

Contracting Officer:

Typed Name: [REDACTED] Date Reviewed: [REDACTED]

Title: [REDACTED] E-Mail: [REDACTED]

Technical Representative:

Typed Name: [REDACTED] Date Reviewed: [REDACTED]

Title: [REDACTED]

Requirements Representative:

Typed Name: [REDACTED] Date Reviewed: [REDACTED]

Title: [REDACTED]

[REDACTED]

[Redacted]

[Redacted]

Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

Program Manager

[Redacted]

[Redacted]

[Redacted]

[Redacted]

[Redacted]

[Redacted]

[Redacted]

**Justification and Approval
for Other Than Full and Open Competition – FAR Part 6**

1. Contracting Activity: Army Contracting Command-Redstone Arsenal (ACC-RSA), CCAM- ALA, Redstone Arsenal, AL 35898-5000.

2. Description of Action: U.S. Army Aviation and Missile Command (AMCOM) Logistics Center (ALC) requests approval to award a limited competitive procurement to one of the contractors approved by the U.S. Army Combat Capabilities Development Command (DEVCOM) Aviation and Missile Center (AvMC), Systems Readiness Directorate (SRD) for the overhaul of the Head, Rotary Wing for the AH-64 Apache, an aviation Critical Safety Item (CSI). The resulting contract will be a new single award, Firm-fixed Price (FFP), five-year Indefinite Delivery Indefinite Quantity (IDIQ) Maintenance and Overhaul (M&O) contract. The estimated dollar value for this action is [REDACTED]. The projected award date is January 2024. Army Working Capital Funds (AWCF) will be utilized. The minimum quantity is 60, with a maximum quantity of 360, which includes a maximum of 60 for Foreign Military Sales (FMS). FMS quantities will utilize FMS funding, but this requirement is not source directed. FMS countries are not known at this time.

3. Description of Supplies/Services: ALC has a requirement for contractor to overhaul the Head, Rotary Wing on the AH-64. This is required to return the items as specified by the Statement of Work (SOW), to Condition Code A as defined by Army Regulation 725-50. The following information is provided for the Head, Rotary Wing:

Procurement Request Identification (PRID):	2020H052
Procurement Request Order Number (PRON):	AX1M6038AX
Noun:	HEAD, ROTARY WING
Input NSN:	1615-01-512-0889
Input P/N:	7-311411003-625
Output NSN:	1615-01-512-0889
Output P/N:	7-311411003-625
Estimated Quantity Range:	60 minimum – 360 maximum (with 60 FMS)
Estimated Base Year Value:	[REDACTED]
Estimated Out-Year (two-five years) Value:	[REDACTED]
Total Estimated Dollars:	[REDACTED]

The total estimated United States (U.S.) requirement quantity is a minimum of 60 for the base year at an estimated value of [REDACTED] and the estimated value for years two – five is [REDACTED]. The total estimated dollar value of the proposed procurement is [REDACTED], including FMS requirements. This calculation is based on multiplying the Maintenance Expenditure Limit (MEL) of [REDACTED] by the

[REDACTED]

maximum quantity of 360, including a maximum of 60 FMS requirements which are not source-directed. The contract completion date will be five years after contract award.

The U.S. and FMS requirements, by year, are as follows:

U.S. Requirement

Year	Quantity		
Base	60	[REDACTED]	[REDACTED]
Year 2	60	[REDACTED]	[REDACTED]
Year 3	60	[REDACTED]	[REDACTED]
Year 4	60	[REDACTED]	[REDACTED]
Year 5	60	[REDACTED]	[REDACTED]
Total	300		

FMS Requirement

Year	Quantity		
Base	0	[REDACTED]	[REDACTED]
Year 2	12	[REDACTED]	[REDACTED]
Year 3	12	[REDACTED]	[REDACTED]
Year 4	12	[REDACTED]	[REDACTED]
Year 5	24	[REDACTED]	[REDACTED]
Total	60		

4. Authority Cited: The statutory authority permitting other than full and open competition is Title 10 United States Code § 3204(a)(5), as implemented by 6.302-5(a)(2)(i) of the FAR, "Authorized or required by statute." Public Law No. 108-136, National Defense Authorization Act Fiscal Year 2004, Section 802, Quality Control in Procurement of Aviation Critical Safety Items and Related Services, as implemented by Defense Federal Acquisition Regulation Supplement (DFARS) 209.270-3(a).

5. Reason for Authority Cited: The Head, Rotary Wing is an aviation CSI, as defined by DFARS 209.270-2. Pursuant to the provisions of Public Law No. 108-136, National Defense Authorization Act Fiscal Year 2004, Section 802, Quality Control in Procurement of Aviation Critical Safety Items and Related Services, as implemented by DFARS 209.270-3(a), contracts for modification, repair, or overhaul of CSIs can only be awarded to a source approved by SRD, the Army's aviation design controller activity. The approved sources for this CSI are [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

6. Efforts to Obtain Competition:

a. Effective competition. In accordance with DFARS 205.205-71, DFARS 206.302-1(d), and DFARS Procedures, Guidance and Information (PGI) 206.302-1(d), a Sources Sought announcement was publicized on sam.gov on 23 May 2022. No interested parties responded to the Government's Sources Sought announcement.

b. Subcontracting Competition: Per FAR 19.702 and FAR 19.704, a Subcontracting Plan is required for large businesses on acquisitions that exceed \$750K. According to FAR 19.704, the contractor must include FAR 52.219-8, entitled "Utilization of Small Business Concerns," in all subcontracts that offer further subcontracting opportunities and shall require all subcontractors, except small businesses, that receive subcontracts in excess of [REDACTED] to adopt a plan that complies with the requirements of the clause at FAR 52.219-9, "Small Business Subcontracting Plan." Per FAR 44.204(c) and DFARS 219.708(b)(1)(A), the solicitation and resulting contract will include the FAR clause 52.244-5, entitled "Competition in Subcontracting" and DFARS clause 252.219-7003, entitled "Small Business Subcontracting Plan (DoD Contracts)" to ensure that all subcontracts are awarded on a competitive basis to the maximum extent possible. The approved sources for this requirement are all large businesses. Therefore, each company will be required to comply with these requirements.

7. Actions to Increase Competition: As stated in paragraph five, this is a CSI and the overhaul can only be performed by sources approved by SRD which include the following: [REDACTED]

[REDACTED] There are currently no actions that the Government can take to increase competition. The Government does not anticipate being able to compete this action on a full and open basis in the future. In the Sources Sought notice applicable to this action, the Government notified all interested vendors that they must be approved sources in order to compete for this action. In addition, information is provided to the vendors containing the established source approval process and required forms. Should a new source become qualified via the SAR process during the contract period of performance, the requirement for future orders will be reviewed. If a new requirement can be validated, a new contract package will be processed and the new source(s) will be given the opportunity to compete for the award.

8. Market Research: In accordance with FAR 10.002(b), meaningful market research for the Head, Rotary Wing was conducted by the [REDACTED], in October 2023, this research is still current, accurate, and relevant. Research methods included the following: (a) discussion with knowledgeable persons, [REDACTED] in Government regarding the commercial nature of the requirement; (b) publication of a formal request for information in the form of a sources sought notice issued on 23 May 2022; (c) review of Government and/or commercial databases for relevant information (Logistics Modernization Program (LMP), Interactive Configuration Management and Procurement Program (ICAPP), and Army

[REDACTED]

Aviation Sustainment Gateway (ARISE).

The results of the research confirmed that [REDACTED] are the only approved sources by SRD. As previously noted, the sources sought notice was published on 23 May 2022. Based upon this market research, it has been determined that the Government's needs cannot be satisfied with commercial items with customary or reasonable modifications or non-developmental items.

9. Interested Sources: The results of the Sources Sought announcement are addressed in paragraph six of this document. There is a reasonable basis to conclude at this time that the agency's minimum needs can only be satisfied by [REDACTED]

10. Other Facts: Procurement history for the Spares and Maintenance and Overhaul of the Head, Rotary Wing is as follows:

Contract No.	DO/CLIN	Spares buy (S) or Repair/ Overhaul (R)	Award Date	Qty	[REDACTED]	[REDACTED]	[REDACTED]
SPRRA1-19-F-0223	0002AA	S	03 Apr 2019	90	[REDACTED]	[REDACTED]	[REDACTED]
W58RGZ-18-F-0164	0002AA	R	27 Sept 2018	75	[REDACTED]	[REDACTED]	[REDACTED]
SPRRA1-17-D-0291	00001AA	S	28 Sept 2017	50	[REDACTED]	[REDACTED]	[REDACTED]
W58RGZ-17-D-0121	0001/0002A A	R	26 Sept 2017	75	[REDACTED]	[REDACTED]	[REDACTED]
W58RGZ-10-D-0127	0007/0001A A	R	03 Dec 2014	50	[REDACTED]	[REDACTED]	[REDACTED]
W58RGZ-10-D-0127	0006/0001A B	R	26 Nov 2013	1	[REDACTED]	[REDACTED]	[REDACTED]

None of the aforementioned contracts were accomplished using full and open competition. The historical purchases appear to have been purchased utilizing IDIQ vehicles. The Previous J&A for W58RGZ-17-D-0121, enclosure 1, stated that since this action is CSI only an approved source can be considered, and that if a new source became qualified via the SAR process, the new source would be given the opportunity to compete. Since the last contract there has been two additional sources added to the qualified sources, [REDACTED] increasing the competition from two qualified sources to four qualified sources.

[REDACTED]

[REDACTED]

11. Technical Certification: I certify that the supporting data under my cognizance, which are included in this J&A, are accurate and complete to the best of my knowledge and belief

[REDACTED]

[REDACTED]

[REDACTED]

12. Requirements Certification: I certify that the supporting data under my cognizance, which are included in the J&A, are accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]

[REDACTED]

13. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable as a result of using the procedures under FAR Part 14, Sealed Bidding. If only one offer is received, the Government will require the submission of Certified Cost and Pricing Data by the prospective lowest bidder in accordance with DFARS 252.215-7008, Only One Offer.

[REDACTED]

[REDACTED]

[REDACTED]

14. Contracting Officer Certification: I certify that this justification is I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Approval

Based on the foregoing justification, I hereby approve a limited competition between

[REDACTED]

[REDACTED] for the procurement of maintenance and overhaul services of the Head, Rotary Wing with an estimated total dollar value of [REDACTED] on an other than full and open competition basis pursuant to the statutory authority permitting other than full and open competition followed by Title 10 United States Code (U.S.C.) 3204(a)(5) as implemented by FAR 6.302-5(a)(2)(i), "Authorized or required by statute," subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.

[REDACTED]

[REDACTED]